

EQUIPMENT SUPPLY AGREEMENT

This Equipment Supply Agreement (“Agreement”) is entered into as of September 5, 2024 between Stark Equipment Co. (“Supplier”) and Keystone Procurement LLC (“Buyer”).

1. Pricing

Supplier shall charge a fixed monthly platform fee for base equipment access, plus usage-based charges for consumables drawn during the month. This hybrid pricing model applies throughout the Term.

2. Discounts

Buyer shall receive a volume discount of eight percent (8%) on all consumable charges. In addition, Buyer may take a further two percent (2%) prompt-payment discount if any invoice is paid within fifteen (15) days.

3. Payment Terms

Buyer shall pay all undisputed invoices within ninety (90) days of invoice date.

4. Minimum Spend

There is no minimum spend or minimum purchase commitment under this Agreement.

5. Term

The initial term is twelve (12) months. This Agreement does not renew automatically and will expire at the end of the initial term unless renewed by mutual written agreement.

6. Termination

Buyer may terminate this Agreement for convenience upon thirty (30) days prior written notice. Supplier may terminate only for cause.

7. Limitation of Liability

Supplier’s aggregate liability under this Agreement shall not exceed Two Million Dollars (\$2,000,000).

8. Indemnification

Each party shall indemnify and defend the other against third-party claims arising from its own acts or omissions (mutual).

9. Governing Law

This Agreement shall be governed by and construed under the laws of the State of Illinois.